FOREIGN EXCHANGE (REGULATION) ACT, 2019 (1962)

Act No. 5 of the year 2019

(Unofficial Translation)

	Particulars	**Date (BS)**
	Date of Royal Seal and Publication	2019.03.15
	Acts amending this Act:	
1	Act Amending, Repealing and Continuing Nepal Acts after Rearrangement, 2019	2019.12.30
2	Judicial Administration Reform (Fourth Amendment) Act, 2043	2043.07.24
3	Foreign Exchange (Regulation) (First Amendment) Act, 2044	2044.07.01
4	Act Amending Some Nepal Acts relating to Finance, 2047	2047.08.27
5	Act Amending Some Nepal Acts, 2048	2049.01.08
6	Foreign Exchange (Regulation) (Second Amendment) Act, 2058	2059.04.22
	Date of Authentication and Publication	
7	Republic Strengthening and Some Nepal Laws Amendment Act, 2066[1]	2066.10.07
8	Act Amending Some Nepal Acts, 2072	2072.11.13
9	Act Amending, Consolidating, Adjusting and Repealing Some Nepal Laws, 2074	2074.06.30
10	Act Amending Some Nepal Acts, 2075	2075.11.19
11	Act Amending Some Nepal Acts relating to Improvement of Economic and Business Environment and Enhancement of Investment, 2081	2081.12.18

[2].....

An Act Made to Regulate Transactions relating to Foreign Exchange

Preamble: [3]Whereas, it is expedient to further regulate transactions relating to foreign exchange in order to maintain the economic interest of the general public;

Now, therefore, His Majesty King Mahendra Bir Bikram Shah Dev has enacted this Act [4]in accordance with Article 93 of the Constitution of Nepal.

[1]This Act came into force from 15 Jestha 2065.

[2]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

[3]Amended by the Act Amending, Repealing and Continuing Nepal Acts after Rearrangement, 2019.

[4]Amended by the Act Amending, Repealing and Continuing Nepal Acts after Rearrangement, 2019.

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1. Short title, extent and commencement:–

(1) This Act may be called the "Foreign Exchange (Regulation) Act, 2019".

[5](2) This Act shall extend throughout Nepal [6]..... and shall also apply to all Nepali citizens residing outside Nepal [7]....., and to the firms, companies and institutions registered in Nepal [8]..... and situated outside Nepal [9]....., and to the branch offices and agencies of such firms, companies or institutions.

(3) This Section shall come into force immediately, and the other Sections shall come into force in such areas and on such dates as the Nepal Government may, from time to time, specify by a notification published in the Nepal Gazette.[10]

2. Definitions:–

Unless the subject or context otherwise requires, in this Act,-

[11](a) "Currency" means all kinds of currency notes, postal orders, postal notes, money orders, cheques, drafts, travellers' cheques, letters of credit, bills of exchange, promissory notes and credit cards, and the term also includes such other similar monetary instruments as specified by the Bank by publishing and broadcasting a public notice.

[12](a1) "Currency note" means a bank note in circulation as cash, and the term also includes coins.

[13](b) "Foreign currency" means any currency other than Nepali currency, and the term also includes the special drawing rights receivable from the International Monetary Fund, the Asian Currency Unit, the European Currency Unit and such other instruments as specified by the Bank by publishing and broadcasting a public notice.

[14](c) "Nepali currency" means the currency denominated in Nepali rupees.

[15](c1) "Convertible foreign currency" means the foreign currency specified by the Bank as convertible foreign currency by publishing and broadcasting a public notice.

[16](d) "Foreign exchange" means foreign currency, all kinds of deposits, credits and balances payable or receivable in foreign currency, foreign securities, and cheques,

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[5]Amended by the First Amendment and re-amended by the Second Amendment.
[6]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[7]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[8]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[9]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[10]The places and dates of commencement of the Sections of this Act are mentioned at the end of this Act.
[11]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[12]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[13]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[14]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[15]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[16]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.

drafts, travellers' cheques, electronic fund transfers, credit cards, letters of credit, bills of exchange and promissory notes in international use which are payable or may be payable in foreign currency, and the term also includes any other monetary instrument specified by the Bank by publishing and broadcasting a public notice.

[17](d1) "Foreign exchange transaction" means the act of purchasing or selling foreign exchange, borrowing or lending it, or taking or giving foreign exchange in any other manner, and the term also includes the act of the Bank granting approval for foreign exchange.

[18](d2) "Licence" means the licence obtained by any person, firm, company or institution from the Bank under Section 3 to carry on foreign exchange transactions.

[19](e) "Licensee" means a person, firm, company or institution that has obtained a licence from the Bank under Section 3 to carry on foreign exchange transactions.

[20](f) "Securities" means shares, stocks, bonds, debentures or debenture stocks issued by any body corporate, or a certificate relating to a unit savings scheme or a group savings scheme or a transferable certificate of deposit issued by a body corporate under prevailing law, and the term also includes the securities specified by the Nepal Government by publishing a notice in the Nepal Gazette, receipts relating to the deposit of securities, and rights and interests relating to securities.

[21](g) "Foreign securities" means securities floated or issued by any country other than Nepal [22].....

[23](g1) "Foreign investment" means the following investment made by a foreign investor in any firm, company or institution:-

(1) investment made in shares,

(2) investment made in deposits,

(3) reinvestment of the income earned from the investment referred to in sub-clauses (1) and (2),

(4) investment made in the form of loans or loan facilities.

[17]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[18]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[19]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[20]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[21]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[22]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[23]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.

[24](g2) "Transfer of technology" means the transfer of technology made by concluding an agreement between any firm, company or institution and a foreign investor in respect of the following matters:-

(1) use of any technological right, specification, formula, process, patent or technical knowledge of foreign origin,

(2) use of a foreign-owned trademark,

(3) provision of foreign technical consultancy, management and marketing services.

[25](g3) "Foreign investor" means any foreign individual, firm, company or institution making a foreign investment or transfer of technology, and the term also includes a foreign government or an international institution.

[26](g4) "Investment abroad" means the following investment made abroad by a company or firm established in Nepal:-

(1) investment made in the shares, or in the purchase of shares, of a limited liability partnership, firm, investment fund, company or a body of similar nature established with limited liability, which is established or registered abroad and is not listed in a foreign securities market,

(2) investment made in the shares, or in the purchase of shares, up to twenty percent of the paid-up capital of a limited liability partnership, firm, investment fund, company or a body of similar nature established with limited liability, which is established or registered abroad and is listed in a foreign securities market,

Provided that such limit shall not apply where a Nepali citizen invests the amount earned during the period of his/her stay abroad.

(3) investment made by a company or firm established in Nepal to open or register its branch or liaison office abroad,

(4) the amount deposited by a company or firm established in Nepal in a deposit account of a bank abroad, or

(5) reinvestment of the income earned from the investment referred to in sub-clauses (1) and (2).

[24]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[25]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[26]Inserted by the Act Amending Some Nepal Acts relating to Improvement of Economic and Business Environment and Enhancement of Investment, 2081.

[27](h) "Gold" includes gold in the form of coins, whether legal tender or not, bars and sheets of gold, whether refined or not, and ornaments and goods made wholly or mainly of gold.

[28](i) "Silver" includes silver in the form of coins, whether legal tender or not, bars and sheets of silver, whether refined or not, and ornaments and goods made wholly or mainly of silver.

(j) "Bank" means the Nepal Rastra Bank.

(k) "Prescribed" or "as prescribed" means prescribed or as prescribed in the Rules framed under this Act.

(l) "Owner in relation to any securities" includes a person having the right to sell or transfer such securities, a person holding such securities in his/her name, a person receiving the dividend or interest on such securities on his/her own behalf or on behalf of another person, or a person having any right in such securities; and, where such securities are held in a trust or the dividend or interest thereon is to be deposited in a trust fund, the term also includes a person having the right to operate, cancel or alter such trust or any condition thereof with or without the consent of any other person, or having the right to control the investment of trust money.

[29](m) "Investigating Officer" means the Investigating Officer designated under Section 11A.

[30](n) "Person residing in Nepal" means any of the following persons:-

1. Nepali citizens other than those Nepali citizens residing outside Nepal for a period longer than that specified by [31]the Bank by publishing and broadcasting a public notice, by way of service, trade or any other business or for any other purpose,

2. Non-Nepali citizens residing in Nepal for a period longer than that specified by [32]the Bank by publishing and broadcasting a public notice, by way of service, trade or any other business.

[33](o) "Person residing outside Nepal" means a person other than a person residing in Nepal.

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[27]Amended by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[28]Amended by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[29]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[30]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[31]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[32]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[33]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.

3. [34]Licence to be obtained to carry on foreign exchange transactions:–

(1) A person, firm, company or institution wishing to carry on foreign exchange transactions shall obtain a licence from the Bank.

(2) A person, firm, company or institution wishing to carry on foreign exchange transactions shall, in order to obtain a licence, submit an application to the Bank along with the details specified by the Bank.

(3) If an application is received under sub-section (2), the Bank may, on the basis of the determined standards, make necessary inquiry and, if it deems appropriate, grant a licence to the concerned person, firm, company or institution to carry on foreign exchange transactions. While granting a licence in this way, the Bank may also specify the type and limit of foreign exchange to be transacted, the period during which transactions may be carried on and other necessary conditions.

(4) The Bank may, from time to time, give necessary orders or directives to a licensee for regulating and systematizing foreign exchange transactions. It shall be the duty of the licensee to comply with such orders or directives.

(5) A licensee shall pay to the Bank the annual fee and deposit as specified by the Bank. The Bank may cancel or suspend the licence of a licensee who does not pay the annual fee or deposit so specified.

(6) If any person, firm, company or institution applies for a one-time licence to carry on foreign exchange transactions, the Bank may, subject to this Section, grant a one-time licence to such person.

3A. [35]Bank may take action:–

(1) If a licensee does not comply with an order or directive given by the Bank under this Act, the Bank may take any or all of the following actions against such licensee:-

(a) to give a warning,

(b) to impose a restriction on any or all transactions of foreign exchange,

(c) to forfeit the cash deposit kept with the Bank or to recover the amount from the guarantee,

(d) to suspend or cancel the licence.

(2) While taking action against a licensee under sub-section (1), the Bank shall give such licensee a reasonable opportunity to submit his/her defence.

[34]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[35]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.

3B. [36]Other provisions relating to foreign exchange transactions:–

Other provisions relating to foreign exchange transactions, except those provided for in this Act, shall be as specified by the Bank by publishing and broadcasting a public notice.

4. [37][38]Procedure for carrying on foreign exchange transactions:–

[39](1) No one shall carry on a foreign exchange transaction with any person other than a licensee without obtaining the approval of the Bank.

(2) No licensee or any other person shall carry on a foreign exchange transaction by giving Nepali currency and taking foreign currency, or giving foreign currency and taking Nepali currency, at a rate different from the exchange rate specified by the Bank.

(3) If any person has obtained foreign exchange for any specific purpose or on any condition, such person shall not use such foreign exchange for any other purpose or violate such condition. If the foreign exchange so obtained cannot be used for the concerned purpose or such condition cannot be fulfilled, he/she shall sell such foreign exchange to a licensee or the Bank, at the rate determined by the Bank, within thirty days from the date of coming to know thereof.

(4) If any person who has obtained foreign exchange for importing any goods into Nepal [40]..... does not import such goods within a reasonable period, or does not import goods equivalent to the value of the foreign exchange so obtained, he/she shall be deemed not to have been able to use the foreign exchange so obtained for that purpose or not to have been able to fulfil that condition.

4A. [41]Provisions relating to foreign exchange obtained by Nepali citizens:–

(1) Matters relating to the foreign exchange obtained by Nepali citizens shall be as specified by the Bank by publishing and broadcasting a public notice.

(2) If a Nepali citizen wishes to keep abroad the foreign exchange earned during the period of his/her stay abroad, or the investment made from such foreign exchange, or to make the investment thereof abroad even after returning to Nepal [42]....., he/she may, except in the circumstances mentioned in Section 6, keep such foreign exchange abroad or invest it abroad by giving information thereof to the Bank.

[36]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[37]Amended by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[38]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[39]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[40]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[41]Inserted by the First Amendment and amended by the Second Amendment.
[42]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

4B. [43]Payment for sale of goods or provision of services to foreigners:–

A person, firm, company or institution in Nepal [44]..... shall, while receiving payment for the sale of any goods or provision of any services to any foreign person, firm, company or institution, receive such payment in convertible foreign currency, except where otherwise provided for by the Bank by publishing and broadcasting a public notice.

5. [45]Restriction on export or import of certain currencies and bullion:–

(1) The Nepal Government may, by publishing a notice in the Nepal Gazette, issue an order to the effect that no person, firm, company or institution shall, without obtaining a licence from the Bank, bring or send any specific type of Nepali currency or foreign currency into the whole or any specific area of Nepal [46]..... While issuing such order, the Nepal Government may specify in such order that such restriction shall not apply in respect of any person, firm, company or institution or in respect of any specific type of Nepali currency or foreign currency.

(2) No person, firm, company or institution shall, without obtaining a licence from the Bank, take or send Nepali currency, or foreign exchange other than that obtained from a licensee, out of any area of Nepal [47].....

Provided that the Nepal Government may, by publishing a notice in the Nepal Gazette, issue an order to the effect that such restriction shall not apply in respect of any foreign exchange.

6. Power of the Nepal Government to obtain foreign exchange:–

(1) [48]If the country faces an economic and monetary crisis resulting in a crisis of foreign exchange, the Nepal Government may, by publishing a notice in the Nepal Gazette, order the Nepali citizens owning foreign exchange to do the following with the foreign exchange owned by them:-

(a) to deposit or cause to be deposited, for sale at the rate determined by the Bank, the foreign exchange specified in such notice with the Bank, in the name of the Nepal Government, or with the person authorized by the Bank for that purpose,

(b) to transfer, in the name of the Nepal Government, the right to receive the foreign exchange specified in such notice, by receiving the price that comes to at the rate determined by the Bank, by a person having the right to confer such right on others.

[43]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[44]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[45]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[46]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[47]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[48]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.

Provided that the Nepal Government may, by the same notice or by issuing another order, cause such order not to apply in respect of any specific person or specific class of persons.

(2) This Section shall not apply in respect of the foreign exchange obtained by any person from a licensee and kept for any purpose with the permission of the Bank.

7. Duty of persons entitled to obtain foreign exchange:–

(1) No person entitled to obtain foreign exchange from outside Nepal [49]..... or to receive payment in [50]Nepali currency shall, without the [51]..... permission of the Bank, do any act so as to delay, or prevent, the receipt of payment, in whole or in part, of such foreign exchange or [52]Nepali currency.

(2) If any person violates sub-section (1), the Bank may give such directive as it deems necessary to such person in order to obtain the foreign exchange or to cause the payment of the [53]Nepali currency.

8. [54]Liability of importers:–

(1) Any person, firm, company or institution importing any goods into Nepal [55]..... by opening a letter of credit or in any other manner, so as to make payment in foreign exchange, shall import such goods within the time specified by the Bank and submit to the Bank the documents as specified by the Bank.

(2) Provisions relating to the type of foreign exchange to be paid for import and the procedure thereof shall be as specified by the Bank by publishing and broadcasting a public notice.

(3) Except where prior approval of the Bank has been obtained, the importer shall import the goods declared in the letter of credit only in accordance with the price and quantity mentioned in such letter of credit.

Provided that, where the letter of credit has been amended, there shall be no bar to importing goods in accordance with the amended price and quantity.

(4) If, while an importer opens a letter of credit for import in a commercial bank, any other person, firm, company or institution stands as guarantor or is directly or indirectly involved in the act relating thereto, and foreign currency is embezzled or misappropriated in any manner in such transaction, the person, firm, company or institution standing as guarantor or being directly or indirectly involved in the act relating thereto shall also be

[49]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[50]Amended by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[51]Omitted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[52]Amended by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[53]Amended by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[54]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[55]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

liable to punishment under this Act for the embezzlement or misappropriation of foreign currency, notwithstanding anything contained in prevailing law.

(5) Notwithstanding anything contained elsewhere in this Section, the procedure for the import of knowledge and information-based technology and payment therefor shall be as specified by the Bank by publishing and broadcasting a public notice.

(6) An importer shall carry out correct invoicing. He/she shall not do any act such as not carrying out correct invoicing, or any act related thereto.

9. Payment of value of exported goods:–

(1) The Nepal Government may, by publishing a notice in the Nepal Gazette, prohibit the export of the goods mentioned in such notice to any place outside Nepal [56]....., except in accordance with the arrangements made under sub-section (2).

[57].....

(2) For the purpose of this Section, the Nepal Government may, in consultation with the Bank, make necessary rules or issue directions or orders.

9A. [58]Receipt of payment of value of exported goods:–

(1) An exporter shall fill in the details mentioned in the export declaration form specified by the Bank and declare before the customs officer that he/she will bring the payment of the value declared in such declaration form in foreign exchange approved by the Bank within the prescribed period.

(2) If, before receiving the payment for the exported goods, a situation arises where a value less or more than the value declared in the declaration form is to be paid, the exporter shall make an application to the Bank along with the evidence thereof, and if such matter is confirmed, the Bank may grant approval to receive such lesser or greater payment.

(3) If the exporter does not receive the payment of the value of the exported goods within the period specified under sub-section (1), he/she shall be deemed to have violated this Act.

(4) Notwithstanding anything contained in sub-section (3), if the exporter makes an application to the Bank, along with evidence, stating the reasonable reason for not being able to receive the payment of the value of the exported goods within the period specified under sub-section (1), and the Bank is satisfied with such matter, the Bank may, by specifying a further period, order the concerned exporter as follows:-

(a) to bring the payment thereof, if the goods have already been sold,

[56]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[57]Omitted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[58]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.

(b) to sell the goods and bring the payment, or to bring back such goods to Nepal, if the goods have not yet been sold.

[59]Provided that if the exporter makes an application to the Bank, along with evidence, stating the reasonable reason for not being able to bring the payment of the exported goods due to circumstances beyond his/her control, the Bank may, after making necessary inquiry, grant exemption to return such goods or from having to bring the payment partly or fully.

(5) If the Bank wishes to have it certified that the value declared in the declaration form will be paid in the prescribed manner within the prescribed period, it may require the exporter to submit the agreement concluded by him/her with the foreign buyer in that respect and other evidence.

(6) In order to make arrangements for the receipt of payment of the full value of exported goods, the Bank may, in respect of all or any specific type of goods to be exported or all or any specific exporters, issue an order requiring them to do as follows:-

(a) to receive the payment of the exported goods only through a letter of credit or through such other means as specified by the Bank, except where otherwise specified by the Nepal Government,

(b) to submit the declaration form to the officer or institution specified by the Bank in order to have it certified that the value declared in the declaration form under sub-section (1) is the actual value of the export.

[60](7) Notwithstanding anything contained elsewhere in this Section, the procedure for the export of knowledge and information-based technology and receipt of payment therefor shall be as specified by the Bank by publishing and broadcasting a public notice.

9B. [61]Acts not to be done by exporters:–

An exporter shall not do any of the following acts:-

(a) to receive the payment of exported goods in a manner other than the prescribed manner,

(b) to make arrangements for receiving the payment of exported goods in a manner that delays it beyond the prescribed period,

(c) to do any act so as not to receive the payment of the full value of exported goods,

[62](d) to do any act of not carrying out correct invoicing, or any other act related to such act.

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[59]Proviso inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[60]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[61]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[62]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.

9C. [63]Restriction on making or receiving payment:–

[64]Except in accordance with the arrangements specified by the Bank, no person residing in Nepal shall, directly or indirectly, do or cause to be done any of the following acts:-

(a) to make any kind of payment in any manner to any person residing outside Nepal,

(b) to draw, accept or negotiate any bill of exchange or promissory note, or to acknowledge any debt, so as to create or transfer a right to receive payment in favour of any person residing outside Nepal,

(c) to make any kind of payment to any person by order of, or on behalf of, any person residing outside Nepal.

10. Control on export and transfer of securities:–

[65]Except in accordance with the arrangements specified by the Bank, no person shall do any of the following acts:-

(a) to export any securities to any place outside Nepal [66].....,

(b) to transfer any securities in the name of any person residing outside Nepal [67].....,

(c) to give any securities in any manner to [68]a person residing outside Nepal, stating that it is for acquisition, enjoyment or keeping under control.

Explanation: "Transfer", in relation to any securities, includes a transfer made by way of loan or security.

10A. [69]Regulation of investment abroad:–

(1) Notwithstanding anything contained in prevailing law, the following companies or firms established in Nepal may make investment abroad:-

(a) an industry exempted, in the notice under sub-section (2) of Section 3 of the Act Restricting Investment Abroad, 2021, so as to be able to make investment abroad,

(b) an industry falling within the classification of information technology industries under the prevailing law relating to industrial enterprises,

(c) the amount of foreign currency received by a foreign investor under sub-section (2) of Section 7A of the Foreign Investment and Technology Transfer Act, 2075.

(2) Under an employee share sale scheme operated or implemented by the parent company abroad of a company established in Nepal, or by another subsidiary company abroad of

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[63]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[64]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[65]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[66]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[67]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[68]Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[69]Amended by the Act Amending Some Nepal Acts relating to Improvement of Economic and Business Environment and Enhancement of Investment, 2081.

such parent company, so as to apply also to the employees of the company established in Nepal who are Nepali citizens residing in Nepal, such employees may obtain shares, and earn income from such shares, without any remittance of convertible currency out of Nepal.

(3) The conditions to be complied with by a company or firm making investment abroad, the sector-wise maximum limit of such investment and other related matters shall be as determined by the Nepal Rastra Bank by publishing a public notice.

10B. [70]Provisions relating to borrowing and lending in foreign exchange:–

No one shall borrow or lend in foreign exchange except as provided for by prevailing law and in accordance with the provisions specified by the Bank by publishing and broadcasting a public notice.

10C. [71]Provisions relating to repatriation of foreign exchange, investment and transfer of rights:–

(1) A foreign investor who has received approval under prevailing law to invest in securities may take or send the following amounts out of Nepal [72]..... in foreign currency in accordance with the procedure specified by the Bank by publishing and broadcasting a public notice:-

(a) the investment made in securities and the profits or dividends received therefrom,

(b) the investment made in the form of loans or loan facilities and the interest thereon.

(2) If a Nepali citizen residing outside Nepal [73]..... receives approval to invest in foreign exchange within Nepal [74]....., he/she shall be provided with the facility under sub-section (1).

(3) In the case of the securities referred to in clause (a) of sub-section (1), the amount that comes to at the price traded in the stock exchange may be taken or sent in foreign exchange in respect of listed securities, and the amount determined on the basis of the assets of the concerned institution in accordance with the procedure specified by the Bank by publishing and broadcasting a public notice may be taken or sent in foreign exchange in respect of unlisted securities.

(4) Any foreign individual, firm, company or institution may, upon paying in foreign currency the tax or fee payable under prevailing law, transfer the right in the securities obtained by it to any other foreign individual, firm, company or institution by fulfilling the formalities of prevailing law.

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[70]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[71]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[72]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[73]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[74]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

(5) A foreign investor may take or send abroad the amount of technical fees, royalties etc. as mentioned in the technology transfer agreement entered into by him/her under prevailing law.

(6) Matters relating to the procedure for taking or sending the repatriation of the air tickets and cargo sold in Nepal by a licensed foreign airline operating in Nepal [75]....., its agent or a Nepali person, firm, company or institution authorized to do such act shall be as specified by the Bank by publishing and broadcasting a public notice.

(7) Notwithstanding anything contained elsewhere in this Section, a person, firm, company or institution that has invested in Nepali currency and does not earn foreign currency shall not be entitled to make or receive payment in foreign currency under this Section.

11. Power to demand statements:–

(1) [76].....

(2) If the Nepal Government or the Bank considers it necessary or expedient, for fulfilling the objectives of this Act, to obtain or examine any statement, account or document, and believes that such statement, account or document is with any person or that such person can obtain and submit it, the Nepal Government or the Bank may order such person to submit, or to obtain and submit, such statement, account or document to the Nepal Government or the Bank.

(3) [77].....

11A. [78]Designation of Investigating Officer:–

The Nepal Government may designate an Investigating Officer to inquire into and investigate the offences under this Act.

11B. [79]Search of a suspected person:–

(1) If there are sufficient reasons and grounds to suspect that any person is holding any foreign exchange in contravention of this Act, the body of such person may be searched, on the order of the Investigating Officer, by an employee of at least non-gazetted second class.

Provided that a woman shall be searched only by a woman.

(2) If, while searching a suspected person, any foreign exchange or any document related thereto is found in contravention of this Act, such foreign exchange or document may be seized.

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[75]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[76]Omitted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[77]Omitted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[78]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[79]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.

(3) While carrying out a search under this Section, at least two local persons shall be kept as witnesses and the search shall be carried out in their presence. A list of the foreign exchange or documents related thereto found during the search shall be prepared and the witnesses present shall also be caused to sign it.

11C. [80]Stopping and search of vehicles:–

(1) If there are sufficient reasons and grounds to suspect that any vehicle has been used or is about to be used to commit an act in contravention of this Act, or that any foreign exchange has been concealed therein in contravention of this Act, such vehicle may be stopped at any time or place on the order of the Investigating Officer.

(2) Any part of the vehicle stopped under sub-section (1) and the goods therein may be searched or inspected, and if, during such search, any foreign exchange or any document related thereto is found in contravention of this Act, it may be seized.

11D. [81]Search of a house or place of business:–

(1) If there are sufficient reasons and grounds to believe that any foreign exchange has been concealed or kept in any house or place of business in contravention of this Act, the Investigating Officer may, by drawing up a memorandum (parcha) thereof, order a search of such house or place of business.

(2) A search under the order referred to in sub-section (1) shall be carried out by an employee of at least non-gazetted second class.

(3) The employee deputed to carry out a search under the order of the Investigating Officer shall give notice, stating also the reason for the search, to the person currently residing in the house or place of business to be searched. If the concerned person does not accept such notice, a copy of such notice shall be affixed at a conspicuous place of the house or place of business to be searched. After the notice is so affixed, the concerned person shall be deemed to have received the notice of search.

(4) After notice is given to the concerned person under sub-section (3), the employees deputed to carry out the search shall be allowed to search the house or place of business.

(5) If the concerned person obstructs the search, the employees deputed to carry out the search shall give notice and opportunity to the persons staying in the house or place of business to be searched to move away. If they do not move away even after such opportunity, the search may be carried out at any time by opening or breaking the outer or inner door, window or latch of the house or place of business to be searched, using such force as may be necessary.

(6) If, during the search, any foreign exchange or document related thereto is found in contravention of this Act, such foreign exchange or document may be seized.

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[80]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[81]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.

(7) While carrying out a search under this Section, [82]a member of the Rural Municipality or Municipality or at least two local gentlemen shall be kept as witnesses and the search shall be carried out in their presence. A list of the foreign exchange or documents related thereto found during the search in contravention of this Act shall be prepared and the witnesses present shall also be caused to sign it.

11E. [83]Arrest:–

(1) If there are sufficient reasons and grounds to suspect that any person has done or is about to do any act in contravention of this Act, [84]the Investigating Officer may make an application to the concerned court for the issue of an arrest warrant, and after the arrest warrant is issued, such person may be arrested at any place.

[85]Provided that if such person is not arrested immediately, or if there is a reasonable ground that such person may flee or escape or destroy proof, evidence or exhibits, or if a person absconding in connection with the offence is found, or if the person is committing the offence or is in the presence of the Investigating Officer, such person may be arrested by issuing an emergency arrest warrant immediately.

(2) A person arrested under sub-section (1) shall be produced before the adjudicating authority within twenty-four hours, excluding the time required for the journey.

11F. [86]Detention:–

A person arrested under this Act may, in the course of inquiry and investigation, be held in detention, with the approval of the adjudicating authority, for a period not exceeding 7 (seven) days at a time and not exceeding thirty days in total.

11G. [87]Prohibition on breach of secrecy:–

The Investigating Officer or the employees subordinate to him/her shall not, while carrying out acts under this Act, breach the secrecy of any matter that has come to their knowledge in their official capacity or of any document submitted, except where required by prevailing law.

Provided that if the adjudicating authority considers that such matter or document is necessary for, or will serve as evidence in, any other case, the disclosure of such matter or of the secrecy of such document before a person authorized by law, on the order of such authority, shall not be deemed to be a breach of secrecy.

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[82]Amended by the Act Amending Some Nepal Acts, 2072.
[83]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[84]Amended by the Act Amending, Consolidating, Adjusting and Repealing Some Nepal Laws, 2074.
[85]Inserted by the Act Amending, Consolidating, Adjusting and Repealing Some Nepal Laws, 2074.
[86]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[87]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.

11H. [88]Foreign exchange and documents seized to be kept safely:–

The Investigating Officer shall keep safely the foreign exchange seized under this Act and the documents related thereto.

11I. [89]Receipt to be given for seizure:–

While seizing any foreign exchange or document related thereto under this Act, a receipt thereof, specifying the details of the foreign exchange and documents related thereto so seized, shall be given immediately to the concerned person.

11J. [90]Submission of report:–

The Investigating Officer shall submit a report of the acts carried out by him/her under this Act to the Nepal Government every month.

12. Power of the Bank to give directions, make by-laws or issue orders or notices:–

Without prejudice to any direction given by the Nepal Government under Section 15, the Bank may, from time to time, as necessary, give directions, make by-laws or issue orders or notices to implement the matters mentioned in this Act.

13. Prohibition on entering into contracts contrary to the objectives of this Act:–

No person shall enter or cause to be entered into any kind of contract or execute any document in a manner inconsistent with any matter mentioned in this Act, or with the Rules or by-laws framed, directions given or orders or notices issued under this Act.

14. [91]Inspection:–

(1) The Nepal Government or the Bank may, at any time, inspect or cause to be inspected the accounts, books of account and other documents of any licensee.

(2) It shall be the duty of every licensee to submit to the employee deputed to carry out an inspection under sub-section (1), within the time given by him/her, all accounts, books of account and documents relating to foreign exchange transactions under his/her charge or control as demanded by such employee, and to give such details or information relating to such exchange transactions as demanded by him/her. If the licensee is a firm, company or institution, such accounts, books of account, documents, details or information shall be submitted or given by the director or concerned office-bearer of such company, or by the partner or concerned office-bearer connected with such work.

(3) The employee deputed to carry out an inspection under sub-section (1) may question, in writing or orally, any licensee or his/her agent or, if the licensee is a firm, company or institution, its director or concerned office-bearer.

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[88]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[89]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[90]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[91]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.

(4) If the director or office-bearer of any person, firm, company or institution fails to submit any accounts, books of account or documents to be submitted, or to give any details or information to be given, under sub-section (2), or fails to answer any question asked by the employee deputed to carry out the inspection, he/she shall be deemed to have violated this Act.

(5) If, while carrying out the inspection, the employee deputed to carry out an inspection under sub-section (1) finds any foreign exchange or any document, books of account, account or details related thereto in contravention of this Act, he/she may take such foreign exchange or document, books of account, account or details into his/her possession, or lock it in any safe or room and seal it.

(6) While taking such foreign exchange or document into his/her possession or affixing a seal under sub-section (5), the employee deputed to carry out the inspection shall keep the concerned licensee or at least two other persons as witnesses, prepare a list of the things taken into possession and also cause the witnesses to sign it.

15. Power of the Nepal Government to give directions:–

The Nepal Government may, if it considers necessary for the purpose of this Act, give general or special directions to the Bank from time to time, and the Bank shall comply with any such direction in carrying out the acts under this Act.

16. [92]Approval of the Bank to be obtained to open accounts:–

(1) Any Nepali citizen residing in Nepal, or any company, body corporate or firm registered in Nepal, shall obtain the approval of the Bank to open an account in a bank situated abroad.

(2) While granting approval to open an account under sub-section (1), the Bank may demand necessary details and also specify conditions.

[93](3) The operation and use of the accounts opened under sub-section (1) shall be as specified by the Bank by publishing and broadcasting a public notice.

[94](4) Matters relating to the opening, operation and use of accounts in foreign currency within Nepal [95]..... by any Nepali citizen residing in Nepal [96]..... or by any firm, company or institution registered in Nepal [97]..... shall be as specified by the Bank by publishing and broadcasting a public notice.

[92]Amended by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.
[93]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[94]Inserted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.
[95]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[96]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
[97]Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

17. [98]Punishment:–

(1) If any person does any act contrary to this Act, the Rules framed under this Act, or any order, directive, circular or notice issued thereunder, or any procedure specified by the Bank, the foreign exchange related to the offence committed by doing such act shall be confiscated and such person shall be liable to a fine equal to the amount involved (bigo) up to an additional fine of three times the amount involved.

Provided that, in respect of offences where the foreign exchange related to such offence cannot be confiscated, the amount involved of the foreign exchange related to such offence shall be ascertained, and he/she shall be liable to a fine equal to the amount involved so ascertained up to an additional fine of three times the amount involved.

(2) If, while ascertaining the amount involved under sub-section (1), a situation arises where the amount involved cannot be disclosed or caused to be disclosed, a fine of up to two lakh rupees shall be imposed, according to the gravity of the offence.

(3) If the employees deputed to carry out acts under this Act, to inspect or to investigate, do any act in bad faith resulting in a violation of the Act, or breach secrecy, the employee doing such act shall be liable to a fine of up to one lakh rupees, according to the gravity of the offence.

(4) If an offence punishable under this Act is committed by any firm, company or institution, the director, office-bearer, employee or agent of such firm, company or institution who was responsible, at the time of the commission of the offence, for the work related to such offence shall be liable to punishment.

Provided that if such director, office-bearer, employee or agent is able to prove that the commission of the offence could not have come to his/her knowledge or that he/she had made every possible effort to prevent such offence, he/she shall not bear liability for punishment under this sub-section.

(5) An importer who has imported goods without doing the acts to be done in relation to import under Section 8, or without fulfilling the procedures to be fulfilled, or by over-invoicing, or who has not imported the goods within the determined period, or who has not imported the goods required to be imported, shall be liable to a fine equal to the amount involved of the concerned import, as ascertained, up to an additional fine of three times the amount involved.

(6) An exporter who commits an offence contrary to Sections 9A, 9B and 9C shall be liable to a fine equal to the amount involved of the exported goods up to an additional fine of two times the amount involved.

[98]Amended by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058.

(7) A person who is an accomplice to or abets the commission of an offence under sub-sections (5) and (6) shall be liable to half the punishment mentioned in those sub-sections.

(8) If the amount of fine imposed under this Section is not paid, such person may be liable to imprisonment for a term of up to four years, according to the amount of the fine.

(9) Notwithstanding anything contained elsewhere in this Section, if the amount involved of an offence relating to foreign exchange is one crore rupees or more, such person shall, in addition to the other punishment to be imposed, also be liable to imprisonment for a term of up to three years.

(10) In the course of investigation, the Investigating Officer, in respect of a person arrested by him/her, and, in the course of the case, the concerned court, in respect of the accused, may proceed with the action by releasing such person on appearance bail (hajir jamani) in the case of offences involving an amount of up to one lakh rupees, and by taking a cash deposit equal to the amount involved of the offence, or a cash deposit equal to the amount involved as ascertained according to the gravity of the offence, in the case of offences involving an amount of more than one lakh rupees, and keeping such person on date (tarekh).

(11) If any person holding the office of the chief or a member of any constitutional body or a political appointment does any act constituting an offence under this Act, he/she shall be liable to double the punishment to which any other person doing such act would be liable.

Provided that, in the case of imprisonment, the additional punishment shall not exceed two years.

(12) [99]A person who does not deposit the cash deposit under sub-section (10) shall be held in custody and the action shall be proceeded with.

18. [100]Inquiry and institution of cases:–

If oral or written information is received from the Nepal Government, or from a person authorized by the Bank, that any person has violated this Act or has done any act contrary to the Rules, by-laws, orders, notices or directions under this Act, the Government Attorney or the officer authorized by the Nepal Government in that behalf shall inquire into such matter, and if, on inquiry, he/she finds that any person has committed such violation or contrary act, he/she shall institute a case against such person.

18A. [101]Filing of cases:–

(1) The Investigating Officer shall file a case relating to an offence under this Act in the name of the Nepal Government.

[99]Amended by the Act Amending Some Nepal Acts, 2075.
[100]Amended by the Act Amending Some Nepal Acts, 2048.
[101]Inserted by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.

(2) While filing a case under sub-section (1), the Investigating Officer shall obtain the opinion of the Government Attorney.

18B. [102]Certification of copies of documents related to foreign exchange:–

(1) The Investigating Officer shall make copies or photocopies of the foreign exchange seized in the course of an offence under this Act, or of the details related thereto, and keep them certified.

(2) Notwithstanding anything contained in prevailing law, the copies or photocopies of the foreign exchange or the details related thereto certified and kept under sub-section (1) may be submitted as evidence in a case relating to an offence under this Act.

19. Documents to be void:–

If any kind of contract or document has been entered into or executed in violation of Section 13, such contract or document may be declared void by the order of the court hearing cases under this Act.

20. [103]Reward for providing information:–

(1) If any person gives information to the Nepal Government or the officer authorized by the Nepal Government about the commission of an offence relating to foreign exchange contrary to this Act or the Rules, by-laws, orders, notices, directions, permission or licence under this Act, and, on the basis of the information so given, the foreign exchange is seized and the offence is proved, the person giving such information shall be given as reward twenty percent of the amount involved that comes to on converting the foreign currency so seized into Nepali currency.

(2) The amount of reward to be given under sub-section (1) shall be given, after the final disposal of the case, out of the amount that comes to on converting the seized foreign currency into Nepali currency.

21. No claim or complaint to lie:–

(1) No case, complaint or legal proceeding of any kind shall be instituted in any court against any person for any act done or intended to be done in good faith under this Act or any Rules, by-laws, orders, notices or directions under this Act.

(2) No claim of any kind shall lie for any loss or damage caused to any person by reason of the Nepal Government, the Bank or a licensee not having made foreign exchange available to such person (except where done knowingly or negligently).

22. Power to make Rules:–

The Nepal Government may, in consultation with the Bank, make Rules for implementing the objectives of this Act.

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[102]Inserted by the First Amendment and amended by the Second Amendment.

[103]Amended by the Foreign Exchange (Regulation) (First Amendment) Act, 2044.

23. Repeal:–

The Foreign Exchange Control Act, 2017 is hereby repealed.

24. Existing licences:–

Unless the Bank orders otherwise, the licences granted under the Foreign Exchange Control Act, 2017 shall, except where cancelled earlier, be deemed to have been granted under Section 3 of this Act for the period specified in such licences and on the conditions specified in such licences.

25. [104].....:–

Places and Dates of Commencement of the Remaining Sections of the Foreign Exchange (Regulation) Act, 2019

(a) In the areas of Kathmandu, Bhadrapur, Biratnagar, Rajbiraj, Hanumannagar, Janakpur, Malangwa, Gaur, Kalaiya, Birgunj, Butwal, Bhairahawa, Parasi, Pakalihawa, Krishnanagar, Shivaraj, Nepalgunj, Dhangadhi, Pokhara, Tansen, Palpa and Dharan, from 2020.05.01. (Nepal Gazette 2020.04.22)

(b) In the areas of Jaleshwar, Taulihawa and Siraha, from 2020.11.01. (Nepal Gazette 2020.10.27)

(c) In the areas of Hetauda, Banepa, Dhankuta, Trishuli and Baglung, from 2021.05.01. (Nepal Gazette 2021.04.27)

(d) In the areas of Ilam, Koilabas, Kanchanpur (Mahendranagar), Gulariya, Bhojpur, Ghorahi and Sarlahi, from 2021.02.01. (Nepal Gazette 2021.02.01)

(e) In Doti District, from 2022.07.01. (Nepal Gazette 2022.06.11)

(f) In Baitadi District, from 2022.11.01. (Nepal Gazette 2022.09.26)

(g) In Bagmati Zone, Narayani Zone, Janakpur Zone, Sagarmatha Zone, Koshi Zone and Mechi Zone, from 2023.06.01. (Nepal Gazette 2023.05.31)

(h) In Gandaki Zone, Karnali Zone, Dhaulagiri Zone, Bheri Zone, Lumbini Zone, Seti Zone, Rapti Zone and Mahakali Zone, from 2023.07.01. (Nepal Gazette 2023.07.01)

Note: (1) Word converted by the Foreign Exchange (Regulation) (Second Amendment) Act, 2058: "धितोपत्र" (securities) in place of "सेक्युरिटी". (2) Words converted by the Act Amending Some Nepal Laws, 2063: "Nepal Government" in place of "His Majesty's Government".

[104]Omitted by the Act Amending, Repealing and Continuing Nepal Acts after Rearrangement, 2019.